so long as the damage is substantial, that determines the question whether it is a taking." *United States* v. *Cress,* 243 U. S. 316, 328 (1917); *United States* v. *Causby,* 328 U. S., at 266. See also *Goldblatt* v. *Hempstead,* 369 U. S., at 594.

C

Appellees, apparently recognizing that the constraints imposed on a landmark site constitute a taking for Fifth Amendment purposes, do not leave the property owner empty-handed. As the Court notes, *ante,* at 113–114, the property owner may theoretically "transfer" his previous right to develop the landmark property to adjacent properties if they are under his control. Appellees have coined this system "Transfer Development Rights," or TDR's.

Of all the terms used in the Taking Clause, "just compensation" has the strictest meaning. The Fifth Amendment does not allow simply an approximate compensation but requires "a full and perfect equivalent for the property taken." *Monongahela Navigation Co.* v. *United States,* 148 U. S., at 326.

> "[I]f the adjective 'just' had been omitted, and the provision was simply that property should not be taken without compensation, the natural import of the language would be that the compensation should be the equivalent of the property. And this is made emphatic by the adjective 'just.' There can, in view of the combination of those two words, be no doubt that the compensation must be a full and perfect equivalent for the property taken." *Ibid.*

See also *United States* v. *Lynah, supra,* at 465; *United States* v. *Pewee Coal Co.,* 341 U. S. 114, 117 (1951). And the determination of whether a "full and perfect equivalent" has been awarded is a "judicial function." *United States* v. *New River Collieries Co.,* 262 U. S. 341, 343–344 (1923). The fact